

I. Emergency Orders

Many people associate the work of the Supreme Court with its “merits cases.” These are cases in which the Court grants review and the parties then conduct established rounds of briefing and participate in oral argument. The Court may also receive briefs from interested non-parties called *amici curiae*. In these cases, the Court eventually issues a decision with a reasoned, written opinion and discloses the votes of all Justices. These robust procedures are intended to ensure that the Court’s decisions are well informed, fair to the parties, and attentive to implications for the broader legal system. The opinions in these merits cases generally carry the full weight of precedent and thus are written in a manner that not only binds lower courts but also aspires to guide them, all while limiting the likelihood that the Court will dramatically change its own positions in the near future.

Yet the Court’s business goes beyond its merits cases. As the Court explains on its website, the “vast majority of cases filed in the Supreme Court are disposed of summarily by unsigned orders.”² The most common orders—there are thousands of these each year—are those in which the Court declines to review cases by denying the parties’ petitions for certiorari.³

In another category of unsigned orders, the Court responds to parties’ emergency requests by issuing an injunction, vacating a lower court’s injunction, granting or lifting a stay of a lower court ruling, or denying such emergency relief. Because these emergency orders often concern legal challenges to governmental decisions and practices, they can have substantial effects on the rights and obligations of governments, private institutions, and broad segments of the American public.

In contrast to its merits cases, however, the Court issues emergency orders without the same regularized rounds of full briefing, amicus participation, and oral argument; without much time for deliberation; often without a written opinion speaking for the Court and explaining its reasoning; and often without disclosing how each of the Justices voted. Many of these orders respond to requests from parties in the early stages of litigation and thus are issued before the lower courts have completed their adjudication and appellate review of the case.

The Court’s use of various truncated procedures has at times attracted public scrutiny. Beginning in the 1950s, some commentators criticized its use of summary decisions on grounds of procedural inadequacy and lack of guidance for the lower courts.⁴ Others argued

that these practices were useful for managing a large caseload and supervising the lower courts.⁵ Subsequent scholarship has continued to address certain forms of summary or unsigned decisions,⁶ and recently the phrase “shadow docket” has come into use as a catch-all term for the Court’s “orders and summary decisions that defy its normal procedural regularity.”⁷

In the past few years, many commentators have focused their attention on the Court’s increasing use of emergency orders,⁸ especially in cases of public importance or controversy.⁹ Several Justices have addressed the issue in recent statements, offering both critiques and defenses of this practice.¹⁰ The Commission also received testimony and comments about the Court’s use of emergency orders. It should be emphasized that the concerns raised are not about the existence of emergency procedures—no one disputes that they are needed for true emergencies—but about specific aspects of their current use by the Court.

This section first examines three sets of concerns about emergency orders: limited process in high-impact cases; limited information about the Justices’ votes and the Court’s reasoning; and uncertain signals about a ruling’s precedential effect. This section then examines proposals from witnesses and commentators for changing current practices, including proposals addressed to concerns about emergency orders generally, as well as those specifically addressed to cases involving the death penalty.¹¹

A. Limited Procedure for Important Cases

The Court’s recent emergency orders have involved issues of national importance and public debate, including abortion,¹² immigration policy,¹³ environmental regulations,¹⁴ and evictions during a surge in COVID-19.¹⁵ Yet the Court’s practice in issuing such orders has involved relatively limited briefing, no oral argument, no norm that the Court’s reasoning must be publicly explained in a written opinion, and no expectation that the Justices’ votes will be revealed. Thus, a prominent line of critique has focused on the dissonance between the significance of many of the Court’s orders and the limited procedures that apply to them. Commentators initially focused criticism on orders that granted emergency applications seeking results contrary to those reached by the lower courts. More recently, following the Court’s first ruling in *Whole Woman’s Health v. Jackson*, which denied an emergency application that would have prevented a Texas abortion law known as S.B. 8 from going into effect,¹⁶ critical attention has also turned to orders that deny such relief.

Although emergency orders technically are temporary and used in service of further adjudication, they often have the practical effect of being the final word on the issue. Since

2016, for example, the Court has issued orders that have effectively determined the end of the period for responding to the 2020 Census;¹⁷ limitations on absentee and curbside voting, including for voters with disabilities and other vulnerable populations, at the height of the pandemic;¹⁸ the degree of exposure to COVID-19 infection for inmates in prisons and jails;¹⁹ and the extent of the right to congregate for religious services during the pandemic.²⁰ Even where such orders eventually expire, moreover, and even where they directly involve only one person as a party, they can have profound implications for affected individuals and influence larger societal debates.²¹

As these examples suggest, the issues resolved through emergency rulings often are controversial as well as consequential. Emergency orders breaking down 6-3 or 5-4 along ideological lines have multiplied in recent years, indicating that the Court increasingly is deciding contested legal questions through cursory and relatively non-transparent emergency procedures.²² During the 2017 Term, there were five orders from which at least three Justices publicly dissented; during the 2020 Term, there were 29 such orders.²³ This increase has occurred even while the merits docket has remained at historically low levels,²⁴ and during the 2019 Term there were nearly as many 5-4 decisions among emergency rulings as on the merits docket.²⁵

Various explanations have been offered for the Court's increasing use of expedited procedures in important and controversial cases: the lower courts' issuance of so-called "nationwide" or "universal" injunctions that "control the behavior of the federal government toward everyone, not just the plaintiffs," and which often prompt the government to seek relief;²⁶ federal executions during the Trump Administration; emergency requests during the COVID-19 pandemic;²⁷ a growing divide between the views of the Supreme Court and the lower federal courts; and possible changes in how the Justices apply the traditional legal standard for emergency relief pending appeal.²⁸ Critics and defenders of the Court's practices draw competing conclusions from such explanations, some of which point to passing rather than persistent causes.

Those who defend the Court's recent use of emergency rulings argue that the problem—if there is one—is not of the Court's own making. As in the lower courts, emergency applications come to the Court from parties seeking urgent relief.²⁹ The consequential nature of the interests at stake is precisely why the Court must act quickly, lest significant rights be left unprotected or harm imposed on the parties and the public while the full judicial process unfolds.³⁰ Deciding important issues using a truncated process, on this view, is not illegitimate; it is the nature of emergency adjudication. And the *de facto* final resolution of important

matters through temporary relief is an unavoidable part of the tradeoff that can happen at any judicial level.

Indeed, virtually everyone agrees that nothing is inherently suspect about emergency orders. Every court must have procedures for accelerated determination of urgent matters, even at the expense of a more deliberative process or more fully reasoned decisions. Disagreement, then, tends to center not on the fact of emergency procedures, but on which matters warrant the Court’s immediate intervention. Critics have argued that the Court is too often using relatively impoverished procedures and deliberation to intervene on important issues, including by overturning reasoned decisions of the lower courts.³¹ Relatedly, some commentators contend that the Court too often acts to disrupt the appropriate “status quo” rather than to preserve it—in some cases, at least, without clear explanation of when or why intervention is warranted.³²

In some respects, these debates may reflect disagreement about the underlying merits of the disputes or about how to weigh the threatened interests or risk of harm.³³ An additional source of disagreement is the question of how to characterize the baseline condition or “status quo” that emergency relief is meant to preserve and the “disruptive force” that is to be held at bay pending full judicial consideration.³⁴ Witnesses before the Commission differed on the proper conception of the status quo for purposes of evaluating the Court’s emergency orders,³⁵ and as one witness acknowledged, the choice will often be contested and “normatively tinge[d].”³⁶ One possible understanding of the status quo is the state of affairs that exists based on the last ruling in the courts below.³⁷ That is the baseline some critics claim the Court too often disrupts, as it did in a number of pandemic-related voting, prison safety, and religious gathering cases, among others.³⁸ A different conception of the status quo is the state of affairs created by the law, policy, or practice being challenged.³⁹ A third understanding was captured by Chief Justice Roberts’s dissent in *Whole Woman’s Health*, in which he explained: “I would grant preliminary relief to preserve the status quo ante—*before* the law went into effect—so that the courts may consider whether a state can avoid responsibility for its laws in such a manner.”⁴⁰ This question becomes more complicated still when policymakers are responding (or not) to a sudden change in the state of the world, such as during a pandemic.

B. Transparency

The Court often issues emergency orders without accompanying explanation, or with very little of it. A standard defense of such a norm is that emergency decisionmaking may not allow time for a thorough expression of the Court’s reasoning in every case, and that anything less

(such as a rote citation to a legal standard without elaboration on its application to a given case) would rarely provide much useful information.

Yet the question is not whether all emergency orders require detailed explanation; there has been no serious suggestion that routine denials of obviously unwarranted relief need to be accompanied by a written opinion.⁴¹ Rather, the question is whether some emergency orders are important enough (as all merits cases are presumed to be) that the public—and the public record—should receive an express statement of the Court’s reasoning and of how the Justices voted.

Critics and defenders alike recognize that the Court sometimes does issue opinions explaining its emergency orders, and individual Justices even more frequently write opinions concurring in or dissenting from the Court’s orders. For critics of the Court’s orders practices, such opinions demonstrate that reasoned explanation is possible; the problem, in their view, is that it is not provided more regularly in cases of national importance.

Critics argue that the lack of a stated rationale on behalf of the Court—and the lack of full disclosure of the Justices’ votes on emergency orders—deprive the public of valuable information about how the Court and each of its members understands and applies the substantive legal principles at issue in important cases.⁴² Similar arguments extend to the procedural rules that govern emergency orders: Critics contend that it is sometimes unclear whether or how the Court is applying the traditional multipart standard used to determine issuance of emergency relief.⁴³

Another line of critique focuses on the disciplining function of reasoned opinions. For example, some critics argue that the Court has not followed a straight line on the question of when to grant emergency relief, and that it has been willing to break new legal ground in certain cases while disclaiming that power in others, without explaining the difference.⁴⁴ In the critics’ view, the lack of explanation enables such variation by removing the rigor and consistency that the writing of carefully reasoned opinions is said to impose on judicial decisions.

Critics more broadly charge that the issuance of high-profile orders without adequate explanation damages the perceived impartiality and legitimacy of those rulings, or even of the Court, in the public eye: When the Court does not routinely explain its reasoning in cases of great public concern, people may speculate that the Justices are making decisions based on politics.

Defenders of the Court’s rulings respond that detailed opinion writing is infeasible in many emergency settings.⁴⁵ On this view, the relative lack of explanation in emergency orders is simply part of the process of faster decisionmaking. Moreover, in certain cases, the chances of the Justices reaching rapid agreement on the outcome might be improved by dispensing with an expectation that a majority of Justices will agree on legal reasoning set out in an opinion speaking for the Court.⁴⁶

Relatedly, it may be practically useful for the Justices to reveal less rather than more in their emergency orders, to avoid locking themselves into positions or reasoning that is based on limited process, reflection, and information.⁴⁷ A similar argument supports the view that Justices ought not be required to reveal their votes in emergency orders.

C. Uncertain Precedential Effect

A third set of concerns centers on the uncertain precedential effect of the Court’s emergency rulings. Even to expert legal observers, including judges, it remains unclear which orders and related opinions operate as precedents binding on lower courts.⁴⁸ In the context of emergency orders, one might think that, at most, only opinions designated as “Opinions of the Court” should function as binding precedents; indeed, Justice Alito recently noted in a public address that a ruling on an emergency application is not a precedent with respect to the underlying issue in the case.⁴⁹ Yet at times the Court has appeared to expect its emergency orders to be treated as precedential, at least if statements of individual Justices or concurring opinions accompany the order, even though none of them is designated as the opinion of the Court.

An example from the Court’s pandemic cases about religious gatherings illustrates this issue.⁵⁰ In *Gateway City Church v. Newsom*, the Court ruled that the Ninth Circuit’s “failure to grant relief was erroneous,” and explained that “[t]his outcome is clearly dictated by this Court’s decision in *South Bay United Pentecostal Church v. Newsom*.”⁵¹ But the *South Bay* case was an emergency ruling that presented no majority rationale. As one Commission witness noted, the Court seemed to require lower courts to discern binding legal principles from an order with a concurring opinion by Justice Barrett (joined by Justice Kavanaugh), a statement of Justice Gorsuch (joined by Justices Thomas and Alito), and a concurrence by Chief Justice Roberts.⁵²

Critics as well as many defenders of the Court’s emergency orders appear to agree that orders like the one in *South Bay* should not carry precedential weight for lower courts. More broadly, even when emergency orders do include an opinion for “the Court,” the nature of

such orders and the quality of the processes that precede them generally counsel against giving dispositive weight to decisions reached on an emergency footing.⁵³ Without clarification, uncertainty about the precedential effect of emergency orders can breed confusion about the content of the law for the lower courts, for relevant parties, and for the public.

D. General Proposals

Commentators have made various proposals aimed at addressing the concerns described above while acknowledging the reality that emergency orders are, and will remain, a necessary component of the Court's work.

1. Giving Reasons

Specific reforms proposed in response to concerns about inadequate transparency—and the accompanying risk of an appearance of inconsistency, arbitrariness, or bias—urge the Court to explain the majority's reasoning in emergency orders involving matters of great public debate. A different approach would place a premium on providing an explanation whenever the Court is undoing reasoned rulings in the lower courts.⁵⁴ Another proposal would urge the Justices to disclose their votes in emergency orders.⁵⁵

The aim of such explanations and disclosures would be to provide guidance to parties, lawyers, and lower court judges; to allow the public to know the role of each Justice in granting or denying an emergency order; and to ensure that especially consequential decisions benefit from the rigor and discipline associated with reasoned opinions.⁵⁶ The explanations need not be lengthy, nor does anyone suggest that opinions need to be written in every case. Instead, the goal is to enable observers to understand the bases for the Court's most significant rulings—to follow the legal trail through each decision and from one decision to the next. Proponents of reform argue that, at a minimum, the Court should clearly articulate the test it is using to assess the application for emergency relief and indicate how (or whether) it applied each prong of the test.⁵⁷

The category of “important” cases in which explanation may be most valuable is not self-defining; reasonable minds will differ about that threshold. Even short opinions take time to write, moreover, and the suggestion that the Court indicate how it applied each prong of a four-part test may be in tension with the suggestion that the writing need not be lengthy. Indeed, there may be an unavoidable tradeoff between the explanatory benefits of any given opinion and the costs of producing it—including not only the time and effort spent preparing the opinion, but also the possibility of committing the Justices to positions they have not yet

had time to consider fully. On the one hand, an opinion in which the Court merely articulates the relevant legal test and states its conclusions on the application of each prong may not pose undue risks of delay or lock-in. On the other hand, such an opinion—lacking the detailed explanation of the underlying reasoning typically found in merits opinions—may not provide much illumination.⁵⁸

The Court has demonstrated, however, that it can issue informative opinions in an expedited way. In a high-profile case concerning the second federal eviction moratorium, the Court released an eight-page per curiam opinion providing a concise analysis of the majority’s view of the likelihood of success on the merits, weighing of the equities, and consideration of the public interest.⁵⁹ Given that public perceptions of the legitimacy of its rulings may be at stake, the Court may well benefit from continuing to adjust its explanatory practices in important cases, with an eye toward providing insight into the Court’s reasoning, reinforcing procedural consistency, and avoiding the possible appearance of arbitrariness or bias.

Relatedly, the Court might also avoid most of the procedural and transparency concerns about emergency rulings by more frequently exercising its discretion to transfer emergency applications to the merits docket on an expedited basis, as it recently did in the ongoing litigation concerning the Texas abortion law,⁶⁰ as well as in *Ramirez v. Collier*, a capital case.⁶¹

2. Clarity on Precedential Value

Many observers seem to agree that emergency orders should not, as a general matter, carry precedential weight. In some of its orders, the Court is careful to say that the grant or denial of emergency relief should not be construed as resolving the merits of the case. The opinions accompanying the first emergency order denying relief in *Whole Woman’s Health* present an illustration: The Court stated that “we stress that we do not purport to resolve definitively any jurisdictional or substantive claim in the applicants’ lawsuit.”⁶² And, as the dissent by Chief Justice Roberts elaborates, “[a]lthough the Court denies the applicants’ request for emergency relief today, the Court’s order is emphatic in making clear that it cannot be understood as sustaining the constitutionality of the law at issue.”⁶³

By contrast, when the Court earlier implied that lower courts are bound even by an emergency order issued with no opinion on behalf of the Court, in *Gateway City Church v. Newsom*, it risked confusing lower courts, relevant parties, and the public. Such an implied expectation would also be hard to square with a central justification for using truncated and relatively non-transparent procedures for emergency orders.⁶⁴ To the extent the Court has been taking steps since that case to clarify whether emergency rulings should have any precedential

effect on lower courts,⁶⁵ or to specify which aspects of individual rulings should or should not be construed as precedent, these are welcome developments.

3. Existing Norms of Deference

A committee of regular advocates before the Court, including several former Solicitors General and Deputy Solicitors General, provided testimony highlighting established principles that the Court has endorsed and yet may not be regularly applying.⁶⁶ These principles, if applied more consistently, might relieve pressure on the Court to intervene early in at least some lower court proceedings. For example, their testimony pointed to “the Supreme Court’s traditional ‘two-court rule,’” which places an especially heavy thumb on the scale against reversing findings of fact that have been made by the trial court and affirmed by a court of appeals.⁶⁷ Also, “when the Court of Appeals sets an expedited schedule to address an important constitutional issue, the interest in ordinary process weighs against Supreme Court intervention.”⁶⁸ One potential cost of more regular adherence to such principles might arise from privileging lower court rulings that turn out to be erroneous. An additional limitation is that these principles are relevant only to a subset of cases. The reach of both principles may be expanded, however, by the greater use of expedited scheduling in the federal appeals courts for cases likely qualifying as emergencies.⁶⁹

4. Nationwide Injunctions

Another approach would aim to eliminate or reduce the number of “nationwide” or other defendant-oriented injunctions in the lower courts, some of which give rise to emergency applications to the Court.⁷⁰ Recommendations along these lines, including proposed legislation, have been primarily motivated not by concerns about the Court’s emergency orders but by considerations about the power of the lower courts; such proposals have inspired extensive debate among commentators and policymakers, which we do not rehearse or evaluate here.⁷¹ A witness before the Commission proposed the alternative of legislation allowing the government to “transfer all civil suits seeking ‘nationwide’ injunctive relief to the D.C. district court—to avoid the concern of overlapping (or diverging) ‘nationwide’ injunctions.”⁷² Funneling litigation involving the federal government into a single court, however, would only affect the subset of cases in which federal law or policy is at issue—and perhaps only the still-smaller subset in which there is a realistic risk of conflicting injunctions.